

The December 5, 2025, motion of Defendant Nationstar Mortgage LLC and America West Lender Services LLC to strike Plaintiff's first amended complaint ("FAC") is granted. Plaintiff's complaint filed on August 7, 2025 shall proceed as the operative complaint in this matter.

Defendants assert Plaintiff's FAC was not filed in conformity with the laws of the state and should be stricken. The Court agrees.

"Ordinarily, an amended complaint may be filed without leave of court only before responsive pleadings are filed." *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 175, citing Code of Civ. Proc. § 472. "After the responsive pleadings are filed an amendment to a complaint ... requires leave of court." *Ibid.*, citing Code of Civ. Proc. § 473 (a).

Here, Plaintiff filed the FAC without leave of the Court after Defendants had answered the initial complaint. As such, it was not filed in conformity with the Rules of Procedure and is subject to striking under Code of Civil Procedure section 436(b). See *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 ("This provision is commonly invoked to challenge pleadings filed in violation of a ... requirement of prior leave of court.")

Plaintiff has not opposed the motion and has made no showing that she had authority to file the FAC. The Court is aware that during the meet and confer process Plaintiff suggested the FAC filed on November 21, 2025 "was submitted pursuant to...judicial authorization" permitted to correct the defect of being unverified. Chaffin Decl., Exh. A, pg. 2. In the court's November 14, 2025 order denying Plaintiff's request for preliminary injunction, the court held, "[t]he verified complaint, in fact, does not include a verification; it is not considered as evidence.... To the extent that Plaintiff seeks other relief, she must file and notice an appropriate motion for the same." Nov. 14, 2025 Order, 2:5-10. That order did not, in any way, authorize Plaintiff to file a FAC after Defendant filed an answer.

Defendants' motion to strike is granted.

5. CU0002305 Jason Christ v. Justis Barquilla

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.

Plaintiff's December 8, 2025, motion to strike the answer and cross-complaint is denied.

Defendant urges the Court to deny the motion because no supporting memorandum of points and authorities was filed by Plaintiff. The Court agrees.

Cal. Rules of Court, rule 3.113 "requires motions to be supported by memoranda containing 'a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced,' and provides that a motion's failure to provide such a memorandum can be construed 'as an admission that the motion ... is not meritorious....' " *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 931, *quoting* Rule 3.1113(b) & (a). "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the

record and the law for factual and legal support that a party has failed to identify or provide.” Id. at 934.

Accordingly, the motion is denied.

6. CU0002304 Jason Christ v. Jordan Hannah

On the Court’s motion, this hearing is continued to March 9, 2026, at 10:00 a.m.

Plaintiff’s December 8, 2025, motion to strike the answer and cross-complaint is denied.

Defendant urges the Court to deny the motion because no supporting memorandum of points and authorities was filed by Plaintiff. The Court agrees.

Cal. Rules of Court, rule 3.113 “requires motions to be supported by memoranda containing ‘a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced,’ and provides that a motion's failure to provide such a memorandum can be construed “as an admission that the motion ... is not meritorious....’ ” *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 931, *quoting* Rule 3.1113(b) & (a). “Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” Id. at 934.

Accordingly, the motion is denied.

7. CU0002112 Martin F. Ryan vs. Lisa Dunne

Defendant Dunne apparently reserved this date for the filing of a motion; none was filed. This matter is dropped from calendar.

8. CU0001386 Rise Grass Valley, Inc. vs. Board of Super. of Nevada County, et al.

On the Court’s motion, this hearing is continued to March 9, 2026, at 11:15 a.m.

Argument shall be heard in connection with the writ of administrative mandate by Petitioner Rise Grass Valley, Inc. on the issue of alleged abandonment solely. Each side is permitted no more than 10 minutes in total.